

Virendra v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 20 May 2022 · Writ-C No. 4469 of 2022 (All.) · WRIT - C No. 4469 of 2022 · **Writ disposed; para 6.8 objection permitted; coercive action stayed eight weeks.**

HEADNOTE

Without examining merits of a challenge to an assessment order and recovery certificates, the Division Bench disposed of the writ by granting liberty to file an objection under paragraph 6.8 of the U.P. Electricity Supply Code, 2005, directing time-bound disposal after hearing, and staying coercive action for eight weeks or until that disposal, whichever is earlier.

FACTUAL SUMMARY

Virendra challenged the Executive Engineer's assessment of 27 November 2020 at Electricity Distribution Block Babrala and recovery certificates of 31 August 2020 and 27 November 2020. He also sought a mandamus that the Executive Engineer consider his objection to the 31 August 2020 provisional assessment and pass a fresh final assessment. Counsel for the distribution corporation stated on instructions that the petitioner may file an objection to the demand, to be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection-under-para-6.8-alternate-remedy

HOLDING

Where a consumer challenges an assessment and recovery certificates in writ, and the licensee states that an objection to the demand will be decided in accordance with law, the High Court may, without expressing any opinion on merits, dispose of the petition by granting liberty to submit an objection under paragraph 6.8 of the U.P. Electricity Supply Code, 2005 within a stipulated period, directing the assessing officer to decide it after hearing, and staying coercive recovery for a short window pending that decision. ¶ 1

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 Writ challenging assessment and recovery was disposed without merits, relegating the consumer to a paragraph 6.8 objection to be decided in accordance with law. ¶ 1

para-6.8-objection-alternate-remedy Liberty was granted to submit an objection under paragraph 6.8 before the assessing officer, with a time-bound hearing and disposal. ¶ 1

fresh-objection-under-clause-6.8 Despite an existing challenge to a provisional assessment, the Court granted four weeks to submit an objection under paragraph 6.8, to be decided preferably within the next four weeks after hearing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE ASSESSMENT ORDER DATED 27.11.2020 AND RECOVERY CERTIFICATES DATED 31.8.2020 AND 27.11.2020

Writ disposed without expressing any opinion on merits. ¶ 1